Nhava Sheva International Container ... vs Maharashtra Electricity Regulatory ... on 30 April, 2012

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

IA No. 164 of 2012
in DFR No.837 of 2012

Dated : 30th April, 2012
Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

Nhava Sheva International Container
Terminals Pvt. Ltd. ...Applicant/Appellant
Versus
Maharashtra Electricity Regulatory Commission
& Ors. ...Respondent(s)

Counsel for the Appellant(s): Mr. P.S. Narasimha, Sr. Adv. with
Ms. Mandakini Ghosh

ORDER

I.A. No. 164 of 2012 (Condonation of delay) The learned Senior Counsel appearing for the Applicant/Appellant, though argued vehemently at the beginning regarding the merits of the Appeal, ultimately, has sought permission to withdraw the matter in order to approach the competent forum for getting the appropriate relief at the appropriate stage.

In view of the request of the learned Senior counsel, permission is granted to withdraw this matter. Accordingly, the Application is dismissed as withdrawn. Consequently, the Appeal is also rejected.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson

vs/mk